

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #16	CCRB Case #: 201609305	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 11/06/2016 5:35 PM	Location of Incident: 230 Mckinley Avenue; 75th Precinct stationhouse	18 Mo. SOL 5/6/2018	Precinct: 75
Date/Time CV Reported Wed, 11/09/2016 10:03 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/09/2016 10:03 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			075 PCT
2. POM Anowar Hossain	02759	947086	075 PCT
3. SGT Angel Vasquez	02217	931365	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Colleen Donohue	10930	932423	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Anowar Hossain	Abuse: On November 6, 2016, at 230 McKinley Avenue, in Brooklyn, Police Officer Anowar Hossain threatened to arrest § 87(2)(b)	A . Exonerated
B . Officers	Force: On November 6, 2016, at 230 McKinley Avenue, in Brooklyn, officers hit § 87(2)(b) against a vehicle.	B . Officer(s) Unidentified
C . SGT Angel Vasquez	Discourtesy: On November 7, 2016, at the 75th Precinct stationhouse, Sergeant Angel Vasquez spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

On November 9, 2016, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of § 87(2)(b). § 87(2)(b) acknowledged that she did not witness the incident.

On November 6, 2016, at approximately between 5:24 p.m. and 5:28 p.m., as documented in the memo books of the officers who were interviewed, § 87(2)(b) was inside of the deli located on 230 McKinley Avenue, in Brooklyn when he was approached by PO Anowar Hossain and PO Colleen Donohue of the 75th Precinct. PO Hossain requested § 87(2)(b)'s identification in order to issue him a summons for having an open container of alcohol in public. PO Hossain allegedly threatened to arrest § 87(2)(b) for not providing his ID (**Allegation A**). § 87(2)(b) entered the deli and spoke with PO Donohue. PO Donohue requested § 87(2)(b)'s ID and he also refused to provide it. Additional officers arrived on the scene and placed § 87(2)(b) in handcuffs. It was alleged that as the officers brought § 87(2)(b) to the police vehicle, unidentified officers pushed § 87(2)(b)'s head into the door of the police vehicle (**Allegation B**). § 87(2)(b) sustained a laceration to his left eyebrow and received eight sutures at § 87(2)(b) on the same day. § 87(2)(b) was arrested and charged with § 87(2)(b) and § 87(2)(b). § 87(2)(b) was issued a summons for § 87(2)(b). According to § 87(2)(b)'s arrest report, the time of his arrest was 5:35 p.m.

On November 7, 2016, as § 87(2)(b) was being transported from the stationhouse to Central Booking, Sgt. Angel Vasquez allegedly told him, "That was kind of fucked up what you did," and "I just spent two hours doing paperwork because you clammed your head on the fucking hood of the car" (**Allegation C**).

This case contains no video evidence.

§ 87(2)(g)

§ 87(2)(b) Sgt. Vasquez was re-interviewed on February 28, 2017.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to § 87(2)(b)'s arrest and the extent of his injuries.
- On February 23, 2017, the NY Comptroller's Office indicated that neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim in regards to this incident (Board Review 27).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first complaint (Board Review 25).
- § 87(2)(b) has filed one prior CCRB complaint (Board Review 24).
 - § 87(2)(b) [REDACTED]
- This is § 87(2)(b)'s first CCRB complaint (Board Review 23).
- PO Hossain has been a member of the NYPD for eight years and has had five CCRB allegations pleaded against him in four cases; none of the allegations were substantiated. § 87(2)(g) [REDACTED]
- Sgt. Vasquez has been a member of the NYPD for 14 years and has had 32 CCRB allegations pleaded against him in 11 cases. Two of his previous CCRB allegations were substantiated § 87(2)(g), § 87(4-b) [REDACTED]
 - In case number 201304076 an allegation of a frisk and a question were substantiated and the Board recommended Command Discipline. The Department issued Sgt. Vasquez instructions for both allegations.
 - § 87(4-b), § 87(2)(g) [REDACTED]

Potential Issues

- § 87(2)(b) was interviewed over the phone on December 13, 2016. § 87(2)(b) failed to return a signed and notarized copy of his verification statement despite contact attempts prompting § 87(2)(b) to do so.
- The undersigned went out to § 87(2)(b) and spoke with § 87(2)(b), in an attempt to obtain video footage. However, § 87(2)(b) did not know how to operate the DVR system and he did not have full access to view the footage from the date of incident which prevented the undersigned from viewing any relevant footage that may have captured the incident.
- Video footage from the deli located on 230 McKinley Avenue had been erased upon the third visit to the location after previous unsuccessful attempts to obtain the video footage.

- § 87(2)(b) only provided a phone statement and did not schedule an interview despite additional contact attempts.
- Neither § 87(2)(b) nor § 87(2)(b) provided any contact information for any of the additional witnesses. Without § 87(2)(b) or § 87(2)(b)'s full names and without any further information for § 87(2)(b) database queries could not be conducted to obtain their contact information.
- Additionally, video footage that § 87(2)(b) and § 87(2)(b) both stated were recorded by the various witnesses were not submitted for the investigation.

Findings and Recommendations

Explanation of Subject Officer Identification

- In his CCRB interview, § 87(2)(b) stated that he had a vague recollection of this incident because he was intoxicated during the incident (Board Review 01). § 87(2)(b) did not know how he sustained his injury and did not know what occurred as he was being placed inside the police vehicle. § 87(2)(b) stated that he was only informed by a witness that the officers pushed him into the car.
- In his unverified interview, § 87(2)(b) stated that did not see what occurred after § 87(2)(b) was taken out of the deli (Board Review 06). § 87(2)(b) stated that after he exited the deli, § 87(2)(b) was already inside the police vehicle. § 87(2)(b) later became aware that officers pushed § 87(2)(b)'s head into the door of the vehicle by § 87(2)(b) and § 87(2)(b) (identified via the investigation as § 87(2)(b)).
- § 87(2)(b) acknowledged that he saw officers placing § 87(2)(b) into the vehicle, but he did not know if the officers made physical contact with his head or if his head made physical contact with any part of the vehicle (Board Review 05). § 87(2)(b) did not provide a sworn testimony in order to further elaborate on what occurred.
- According to the 911 call recording and both civilian and officer accounts, there were multiple units that responded to the location in addition to those identified via the investigation (Board Review 11). Additionally, the EVENT documentation indicated that only officers from the 75th Precinct responded to the location (Board Review 30). § 87(2)(g)
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§ 87(2)(g)
- In a follow-up call for additional information, § 87(2)(b) stated that as he was leaving the stationhouse to be transported to Central Booking, an officer told him, "I just spent two hours doing paperwork because you slammed your head on the fucking hood of the car" (Board Review 04). He described this officer as a male, darker complexion than himself, wore a regular blue uniform, 5'5"-5'9" tall, darker complexion than § 87(2)(b) possibly either black or Hispanic, short hair, medium build, no glasses, and no facial hair. Sgt. Vasquez is a Hispanic male who is 5'11" tall, weighs 190 pounds, with black hair and black eyes (Board Review 09). According to his memo book, Sgt. Vasquez did not end his tour until 1:57 a.m. on November 7, 2016 and according to § 87(2)(b)'s Arraignment Details as shown in the Booking and Disposition database, § 87(2)(b) arrived at the Central Booking at 1:51 a.m. on November 7, 2016 (Board Review 22). Additionally, in his CCRB interviews, Sgt. Vasquez acknowledged

preparing the TRI Report and stated that he saw § 87(2)(b) as he was going to be transported to Central Booking (Board Review 09) § 87(2)(g)

Allegations not pleaded

§ 87(2)(g)

Search:

In a follow up phone call for additional information, § 87(2)(b) stated that § 87(2)(b) informed her that an individual was searched during the incident (Board Review 29). However, neither § 87(2)(b) nor § 87(2)(b) alleged that any officers searched anyone. § 87(2)(g)

Allegation A –Abuse of Authority: On November 6, 2016, at 230 McKinley Avenue, in Brooklyn, Police Officer Anowar Hossain threatened to arrest § 87(2)(b)

It is undisputed that at some point during this incident § 87(2)(b) was holding an opened bottle of Hennessy, which is a brand of liquor. It is also undisputed that § 87(2)(b) refused to provide his ID to PO Hossain when he approached him inside of the deli in an attempt to issue § 87(2)(b) an open container summons.

§ 87(2)(b) stated that upon entering the deli and placing down the bottle of Hennessy, PO Hossain and PO Donohue approached him (Board Review 06). PO Hossain asked if the bottle was his and he denied that it was. PO Hossain then asked for his ID and he refused to provide his ID. During his unverified interview, § 87(2)(b) stated that he did not want to provide his ID because he was not holding anything at the time. PO Hossain then told him that he was going to get locked up if he did not provide his ID. He was not informed of any additional reasons for why he was going to be arrested.

§ 87(2)(b) did not have a complete recollection of the incident because he was intoxicated during the incident. In his CCRB testimony, § 87(2)(b) stated that he as with § 87(2)(b) and his friend, § 87(2)(b),” outside of the deli drinking “Hennessy” prior to the officers arriving on the scene (Board Review 01). § 87(2)(b) did not state that he heard PO Hossain asking § 87(2)(b) for his ID or threatening to arrest § 87(2)(b) during the incident.

In their CCRB testimony, PO Hossain and PO Donohue both stated that § 87(2)(b) repeatedly refused to provide his ID upon PO Hossain’s request (Board Review 07 and 08). PO Hossain stated that after numerous verbal attempts to have § 87(2)(b) provide his ID, he told § 87(2)(b) that if he continued to refuse to provide his ID he would be arrested and taken to the stationhouse in order to verify his name and date of birth (Board Review 08). § 87(2)(g) (Board Review 07).

During his CCRB interview, PO Hossain stated that § 87(2)(b) was not going to be arrested for anything else and that he was going to be issued a summons and then released at the stationhouse.

According to Patrol Guide Procedure 209-09, while issuing an individual a summons, an officer must establish the identity of that individual. If there is doubt concerning the identity of the individual, an officer should remove that individual to the command for investigation (Board Review 26).

§ 87(2)(g)

§ 87(2)(b) . Therefore, it is recommended that **Allegation A** to be closed as **exonerated**.

Allegation B –Force: On November 6, 2016, at 230 McKinley Avenue, in Brooklyn, officers hit § 87(2)(b) against a vehicle.

It is undisputed that § 87(2)(b) was intoxicated at the time of incident. It is also undisputed that § 87(2)(b) sustained this injury after he was taken out of the deli and while he was by the police vehicle on the scene. § 87(2)(b) was transported to § 87(2)(b) from the stationhouse and was treated for a laceration to his left eyebrow § 87(2)(b) § 87(2)(g) .

As stated above, during his CCRB interview on November 22, 2016, § 87(2)(b) stated that he did not have a complete recollection of this incident or any recollection of how he sustained his injury. Specifically, § 87(2)(b) stated that he did not recall what occurred from the time he was brought to the police vehicle at the scene of his arrest to the time he woke up at the hospital (Board Review 01). During his initial phone statement he provided on November 16, 2016, § 87(2)(b) stated that officers later informed him that he had banged his own head against a car during the incident (Board Review 28). During the same call, § 87(2)(b) stated that he was informed by his friend, § 87(2)(b) that officers pushed him into the car. He did not reiterate this in his CCRB testimony. In a follow up phone call to § 87(2)(b) on November 30, 2016, he stated that an officer, identified via the investigation as Sgt. Vasquez, informed him that he had slammed his head on the hood of the vehicle (Board Review 04).

§ 87(2)(a) PHL § 18(6), § 87(2)(g)

§ 87(2)(b) submitted a photo of his injury which he stated that he took on approximately November 8, 2016 (Board Review 02). The photo depicts a laceration to § 87(2)(b)'s left eyebrow with stitches.

In his unverified phone statement, § 87(2)(b) stated that after he exited the deli, § 87(2)(b) was already inside the police vehicle (Board Review 06). § 87(2)(b) denied seeing any injuries on § 87(2)(b) during the incident. § 87(2)(b) stated that he was shown a video recorded by § 87(2)(b) which showed § 87(2)(b) already inside the police vehicle. This video was never provided to the investigation. During his initial phone statement, § 87(2)(b) stated that he was informed by § 87(2)(b) and § 87(2)(b) that the officers banged § 87(2)(b)'s head against the car and that he was bleeding.

§ 87(2)(b) did not provide a sworn testimony, but in his phone statement, he stated that he saw officers placing § 87(2)(b) into the vehicle by shoving him inside and lowering his head (Board Review 05). He did not know if officers made physical contact with § 87(2)(b)'s head and did not know if his head made physical contact with the vehicle. § 87(2)(b) also stated that § 87(2)(b) was not bleeding prior to being placed inside the vehicle, but saw that his eye was bleeding afterwards.

In their CCRB testimony, PO Donohue and PO Hossain stated that § 87(2)(b) was compliant as he was getting into the police vehicle (Board Review 07 and 08). PO Hossain stated that § 87(2)(b) might have initially refused to get in, but he eventually complied and there was no struggle. PO Donohue and PO Hossain both stated that they heard noises from inside of the vehicle after § 87(2)(b) was placed inside. PO Donohue stated that she heard two thumps emanating from inside the vehicle. PO Hossain stated that he heard § 87(2)(b) kicking the door and heard the officers say that § 87(2)(b) was kicking the door and trying to break it. At some point, PO Donohue and PO Hossain were informed by officer(s) that § 87(2)(b) was hitting his head inside the vehicle. PO Donohue stated that she was informed of this by Sgt. Vasquez and another officer and PO Hossain stated that it was either Sgt. Vasquez or another officer who informed him of this. PO Donohue and PO Hossain both denied seeing making physical contact with § 87(2)(b)'s head or hitting him against any objects. They also denied seeing any officers hitting him against any objects or making any physical contact with his head. As § 87(2)(b) was being transported to the stationhouse, PO Hossain sat inside the rear of the police vehicle with § 87(2)(b). PO Donohue and PO Hossain stated that § 87(2)(b) had stopped hitting his head. PO Hossain stated that throughout the ride to the stationhouse, he held § 87(2)(b) by using his hand to push against § 87(2)(b)'s shoulder so that § 87(2)(b) did not fall onto him.

Sgt. Vasquez denied seeing any injuries on § 87(2)(b) as he was being placed inside the police vehicle (Board Review 09). He denied seeing any officers hit § 87(2)(b) against the police vehicle or any objects. Sgt. Vasquez denied using force against § 87(2)(b) or making any physical contact with him. He also denied seeing any officers making any physical contact with § 87(2)(b)'s head or using force against him. Sgt. Vasquez stated that as he was standing by the vehicle, his attention was drawn to the vehicle after he heard noises from inside the vehicle. Sgt. Vasquez subsequently saw § 87(2)(b) repeatedly banging head against the window. He did not know how many times § 87(2)(b) banged his head. Sgt. Vasquez stated that he instructed one of the officers to sit inside to transport him to the stationhouse where he would be transported to the hospital. Sgt. Vasquez did not

see any injuries on § 87(2)(b) until after he arrived at the stationhouse. Sgt. Vasquez stated that § 87(2)(b) was bleeding from his left eye.

During their CCRB interviews, PO Donohue, PO Hossain, and Sgt. Vasquez were presented with a photo of § 87(2)(b)'s injury. PO Donohue and PO Hossain both affirmed that the injury depicted was consistent with the injury they observed during the incident (Board Review). PO Donohue did not know how § 87(2)(b) sustained this injury, but PO Hossain stated that he sustained it from when he banged his head against the police vehicle. During his interview, Sgt. Vasquez stated that he did not recognize the injury depicted in the photo and did not know how § 87(2)(b) might have sustained the injury.

In his CCRB testimony, Sgt. Vasquez initially denied filling out the TRI report but after reviewing the report, he later affirmed that he prepared it. According to the TRI report, it was noted that § 87(2)(b) sustained minor contusions and had lacerations requiring sutures. It was also noted that the injury was an intentional self-inflicted injury (Board Review 14).

The Medical Treatment of Prisoner Report noted that after § 87(2)(b) was placed in the police vehicle he began hitting his head into the front cage of the police vehicle and had an injury to his left eye (Board Review 15).

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Therefore, it recommended that **Allegation B** be closed as **Officers unidentified**.

Allegation C –Discourtesy: On November 6, 2016, at the 75th Precinct stationhouse, Sergeant Angel Vasquez spoke discourteously to § 87(2)(b)

It is undisputed that Sgt. Vasquez was present at the 75th Precinct stationhouse while § 87(2)(b) was being transported to Central Booking. § 87(2)(g)

In a follow phone call to § 87(2)(b) for additional information pertaining to his CCRB interview, § 87(2)(b) stated that Sgt. Vasquez came up to him and stated, “That was kind of fucked up what

you did,” and “I just spent two hours doing paperwork because you slammed your head on the fucking hood of the car” (Board Review 04).

In his second CCRB interview, Sgt. Vasquez stated that a TRI Report generally takes between one to four hours to prepare, but it depends on the information that needed to be gathered (Board Review 09). Sgt. Vasquez did not recall how long it took him to prepare the TRI Report in regards to this incident. Sgt. Vasquez stated that at some point while at the stationhouse on November 7, 2016, he saw § 87(2)(b) at the stationhouse as he was being transported to Central Broken after returning from § 87(2)(b). Sgt. Vasquez denied having any conversation with § 87(2)(b) after he came back from § 87(2)(b). Furthermore, Sgt. Vasquez denied having any conversation about him preparing a report because § 87(2)(b) banged his head and denied saying, “That was kind of fucked up what you did,” or, “I just spent two hours doing paperwork because you slammed your head on the fucking hood of the car.” Sgt. Vasquez denied using any profanities and did not hear any officers using any profanities at the stationhouse.

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date